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|            |                                                                                           | <p>standard of care occurred here. That is, if Defendants knew there was a wobbly bench being used by patrons, and failed to either remedy or warn the patrons of it, this could be deemed gross negligence.</p> <p>Demurrer is OVERRULED.</p> <p>As to the Motion to Strike it is DENIED except as to Item 3 and 5 above, which is GRANTED with 20 days leave to amend. There is no basis for attorney's fees pled in the Complaint. As to punitive damages, ¶51 is sufficient to put Defendants on notice of the claim against them and could warrant punitive damages, if true.</p> <p>Defendants to give notice</p>             |
| <b>103</b> | <p><b>Nguyen vs. Orange County Transportation Authority</b></p> <p><b>25-01484412</b></p> | <p>Motion to Be Relieved as Counsel of Record</p> <p>The unopposed motion of attorney Donald Dunham of the Law Offices of Dunham, Ramirez &amp; Van LLP to be relieved as counsel for Plaintiff Tammy Banh Nguyen is GRANTED.</p> <p>Service on the client and on all other parties who have appeared in the case was proper and all required forms containing the requisite information were filed pursuant to California Rules of Court, rule 3.1362.</p> <p><b>The order will take effect once moving attorney files proof of service of the signed order (MC-053) on the client.</b></p> <p>Moving attorney to give notice.</p> |
| <b>104</b> | <p><b>Kinecta Federal Credit Union vs. Ogi</b></p> <p><b>25-01509319</b></p>              | <p>Motion to Set Aside/Vacate Default and Judgment</p> <p>Defendant, Jeffrey Masayuki Ogi, moves for an order setting aside and vacating the entry of default and</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                               |

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|            |                                                                                     | <p>default judgment entered against him on January 31, 2026.</p> <p>Plaintiff's opposing papers were late-filed and late-served on May 14, 2026. In addition, and significantly, Plaintiff's opposing papers were not served on Defendant's counsel of record in this action.</p> <p>Accordingly, the Court <b>CONTINUES</b> the motion to set aside and vacate default and default judgment to <b>June 30, 2026</b> at 10:00 a.m. in Department C25.</p> <p>Plaintiff is <b>ORDERED</b> to properly serve Defendant's counsel of record, and to file proof of service of the same, no later than nine (9) court days before the continued hearing date.</p> <p>A reply may be filed per Code based on the continued hearing date.</p> <p>The Court orders clerk to give notice</p> |
| <b>105</b> | <p><b>Ellis vs. Volkswagen Group of America, Inc.</b></p> <p><b>25-01503772</b></p> | <p>Motion for Attorney Fees</p> <p>Plaintiff, Carl Mason Ellis, moves for attorneys' fees and costs in the total amount of \$26,036.50, consisting of a lodestar amount of \$23,183, including anticipated fees, \$535.24 in costs, and \$2,318.30 for a multiplier of 0.1x.</p> <p>The Motion is <b>GRANTED</b>, in part, <b>DENIED</b>, in part.</p> <p>The Court <b>GRANTS</b> attorneys' fees in the reduced amount of \$16,903. The Court <b>DENIES</b> a multiplier.</p> <p>The Court <b>GRANTS</b> costs in the amount of \$535.24.</p> <p>Objections to the Declaration of Nadia Alam, Esq.</p> <p>The Court <b>OVERRULES</b> Objection Nos. 1-16, and 18.</p>                                                                                                              |